

likely to have no sufficient assets to meet its debts. (*Automotriz etc. v. Resnick* (1957) 47 Cal.2d 792, 796–797 [306 P.2d 1].)

Butler America, LLC v. Aviation Assurance Co. (2020) 55 Cal.App.5th 136, 146.

As to Nascimento, the Court has reviewed the uncontested factual evidence presented with the motion, and it is satisfied that plaintiffs have met its burden. It is clear on the evidence that Nascimento conducted the landlord business of MC Builders, as to the premises at issue in this case, as his personal business, with no pretense or attempt to separate himself from any corporate entity. The remainder of plaintiff's proof is equally convincing. Based on this showing that Nascimento and MC Builders were alter egos, the Court need not reach the additional grounds argued by plaintiffs. Nascimento has presented no contrary evidence and has filed no opposition.

The evidence is not equally convincing as to LT Builders. Although MC Builders was an alter ego of Nascimento, and assuming arguendo that LT Builders was also an alter ego of Nascimento, it does not follow that LT Builders and MC Builders were alter egos of each other. The evidence is equally consistent with the hypothesis that LT Builders and MC Builders were both businesses owned and run by Nascimento, but that their business operations and property holdings were separate from each other. No evidence shows convincingly that LT Builders was either essentially the same business operation as MC Builders, or a successor to it.

The Court notes, however, that as Nascimento is being added as a judgment debtor, any ownership interest he has in LT Builders (or its assets) might potentially be reachable in satisfaction of the judgment on the basis that it is an asset owned by a judgment debtor. The Court also notes that since LT Builders is a dissolved corporation, it may not make any practical difference whether or not it were added as a judgment debtor here.

11. 1:30 PM CASE NUMBER: C23-02401

CASE NAME: KIARA ROSS VS. KOTLIER ERNEST M.

CROSS COMPLAINT

FILED BY:

TENTATIVE RULING:

Before the Court is a demurrer by cross-defendants Doug Smith, Fuller Properties, LLC, and approximately 20 other entity cross-defendants to the cross-complaint by Sequoia Equities, Inc. and Alder Creek Management, Inc. The parties were ordered to meet and confer, and the hearing on the demurrer to the cross-complaint was continued to this date.

On August 12, 2026, the parties filed a joint report on their meet and confer efforts in which they asked the Court to continue the hearing to a date prior to September 16, 2026. Pursuant to the parties' joint request, the hearing on the demurrer is continued to **9:00 a.m. on September 9, 2026**. No appearance is required at the hearing on August 26, 2026.